KYLE SMITH FAYETTEVILLE CITY COUNCIL WARD 4

Activating the Enduring Green Network

A Market-Driven Strategy for Urban Nature Preservation and Smart Density

Fayetteville's **City Plan 2040** includes the **Enduring Green Network (EGN),** a visionary map designed to protect stream corridors, steep Ozark hillsides, forests, and open spaces across our community. But *this conceptual map has no legal force*.

For years, this policy gap has been cited on a case-by-case basis to deny housing and infill projects, but no legislative solutions have been introduced to give the EGN regulatory force. As a result, both our housing supply and our natural environment remain in limbo — artificially restricting home construction, driving up housing costs for local families, and leaving critical natural areas unprotected.

This proposal offers a practical answer to years of inaction: *a market-driven* **Transfer of Development Rights (TDR)** program. Developers pay EGN landowners to protect their land permanently. In return, the developers can build more homes in growth areas the city has already chosen.

This approach protects property rights, preserves valuable natural habitats, expands housing supply to stabilize costs, and encourages growth where city infrastructure already exists. No tax dollars are used to buy land.

Policy 1: EGN becomes Sending Zone, always by choice

Land inside the mapped Enduring Green Network will serve as the preservation area.

- **Voluntary CCR Zoning Integration:** No landowner is forced to preserve their land. Instead, developers pay property owners to voluntarily rezone eligible land to the City's official **Conservation, Cultural, and Recreation** zoning district *(UDC § 161.38)* or sign a permanent conservation easement.
- **Ecological Credit Values:** Land with high environmental value generates more credits per acre:
  - 1 Acre of Standard Upland Forest = 1.0 Credit
  - 1 Acre of Steep Forest or Contiguous Canopy = 1.5 Credits
  - 1 Acre of Rare Wet Prairie or Headwater Wetland = 2.0 Credits
- **Higher Tree Protection Standards:** Within mapped EGN boundaries, site development rules will require keeping 60–70% of mature tree canopy and remove loopholes that previously allowed single-lot land clearings.

Policy 2: Growth Centers become Receiving Zones

Developers in the designated growth centers on the city's Growth Concept Map (GCM) who buy EGN credits earn building bonuses.

- **Zone boundaries follow real walking routes:** a 5-minute walk (¼ mile) for neighborhood centers and a 10-minute walk (½ mile) for major commercial centers.
- **Infrastructure Readiness Triggers:** Infill centers qualify right away. Edge-of-town centers (such as Wedington & Double Springs) qualify only after utilities, fire response, and transit services meet minimum standards.

- **Tiered Entitlement Bonuses:**
  - **Tier 1 High-Intensity Centers** *(Downtown, North College)***:** Redeeming credits unlocks +2–3 extra stories of building height and eliminates residential parking minimums.
  - **Tier 2 Medium-Intensity Corridors** *(Crossover intersections)***:** Redeeming credits unlocks +1–2 extra stories and cuts residential parking requirements in half.
  - **Tier 3 Neighborhood Nodes:** Redeeming credits allows duplexes, triplexes, and townhomes by-right in RSF-# zones, plus small corner shops (cafes, neighborhood markets up to 3,000 sq. ft.) within 1–2 blocks of the main intersection.
- **Mandatory Walkable Design:** In commercial areas, bonuses require walkable design under the Form-Based Code. Buildings close to the sidewalk, parking behind, and pedestrian-friendly shopfronts.

Policy 3: A Backup Market & Long-Term Stewardship

Preserving land on paper is only the first step. Long-term care and market flexibility are critical.

- **EGN Land Bank:** If developers cannot find individual landowners willing to sell credits directly, they can pay a fee into an official **EGN Escrow Fund.**
- **Reverse Auction:** Once a year, the City will pool these funds to host a Reverse Auction, purchasing easements or CCR zoning from the lowest-bidding EGN landowners.
- **Stewardship Endowment Fund:** Every EGN credit purchase includes a mandatory 5% fee dedicated to an endowment fund. It pays for invasive plant removal, plantings, habitat restoration, and trail upkeep, with partners like the Northwest Arkansas Land Trust.

Summary of Benefits

Stakeholder	How They Benefit
EGN Landowners	Earn money from their land without selling.
Renters & Home Buyers	More homes in walkable areas ease pressure on prices..
Infill Builders	A clear, predictable path to build more.
Fayetteville Residents	Protected forests and streams, reduced urban flooding, preserved Ozark canopy, and vibrant, walkable neighborhoods.
City Government	Meets City Plan 2040 goals without takings lawsuits or tax-funded land purchases.